

Bihar Sports (Registration, Recognition and Regulation of Associations) Act, 2013

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State of Bihar - Act

Bihar Sports (Registration, Recognition and Regulation of Associations) Act, 2013

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Bihar Sports (Registration, Recognition and Regulation of Associations) Act, 2013

Act 21 of 2013

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Bihar Sports (Registration, Recognition and Regulation of Associations) Act, 2013

(Bihar Act

No. 21 of 2013

)

Last Updated 11th February, 2020

Preambles. - An Act to provide for registration, recognition and regulation of sports associations and to facilitate and regulate activities and affairs of the Sports Associations in the State of Bihar, and also for recognition and regularization of right to represent State of Bihar in different national and international sports events.

Be it enacted by the Legislature of the State of Bihar in the Sixty forth year of the Republic of India as follows:-

Chapter - 1 Preliminary

1.

Short title, extent and commencement.

- This Act may be called The Bihar Sports (Registration, Recognition and Regulation of Associations) Act, 2013.

(1)

It shall extend to the whole of the State of Bihar;

(2)

It shall come into force at once;

2.

Definitions.

- In this Act, unless the context otherwise requires-

(a)

'Ad-hoc Executive Committee' means an Executive body, which is temporarily entrusted with the management of the affairs of a Sports Association by the Registrar under Section-27 and 29 of this Act.

(b)

'Affiliation' means establishment of a relationship for the purpose of achieving the objective of this Act.

(c)

'Annual General Meeting' means the annual meeting of the General Body of a Sports Association.

(d)

'Bihar Olympic Association' means the Association constituted for the purpose of representation of the State of Bihar in the National games and which is recognized as such by the Indian Olympic Association and is duly affiliated to the Bihar State Sports Council.

(e)

Bihar State Sports Council shall means the council constituted by Government of Bihar in exercise of powers conferred under section-5 of this Act.

(f)

'Certificate of Affiliation' means a document issued by the Bihar State Sports Council, a State Level Sports Association or District Sports Council or A District Level Sports Association while granting Affiliation under the provisions of this Act and shall include a letter of Affiliation issued by the Bihar Olympic Association.

(g)

'District' means a revenue district of State of Bihar.

(h)

'District Level Sports Association' means a sports unit, which represents a Revenue District, in a particular game or sports and is duly affiliated to the concerned District Sports council or State Level Sports Association and is registered with the Registrar.

(i)

'District Sports Council' means a council constituted by the Bihar State Sports Council operating in a Revenue District under the control of the Bihar State Sports Council.

(j)

'Election' means election of the Executive Body of a Sports Associations.

(k)

'Executive Body' means a group of duly elected persons who manage and control the affairs of a Sports Association, by whatever name such body may be called.

(l)

'Extraordinary General Meeting' means a special meeting of the General Body of a Sports Association other than an Annual General Meeting,

(m)

'General Body' means the body of all voting and non-voting members of a sports Association.

(n)

'Government' means the Government of the State of Bihar.

(o)

'Observer' means a person appointed by the Registrar, for monitoring of Elections and any other proceedings of the Bihar State Sports Council, a District Sports council or a Sports Association.

(p)

'Office Bearer' means any person who holds the post of the President, Vice-President, Secretary or Treasurer in the Executive Body of a Sports Association.

(q)

'Primary Sports Body' means a sports unit operating in a revenue district which is neither a State Level Sports Association nor a District Level Sports Association and is working at sub-division or Anchal or city or village level and is constituted by Individuals and is affiliated to a District Level Sports Association.

(r)

'Registrar' means the Registrar referred to in Section 4 of this Act to perform the functions of the Registrar and includes any person appointed to assist the Registrar when exercising all or any of the powers of the Registrar.

(s)

'Regulations' means regulations framed by the Executive Body of a Sports Association in the matter of conducting tournaments, coaching, training, Umpire's clinic or any other matter not covered under the bye-laws.

(t)

'Special Resolution' means a resolution passed by two third majorities of members present and voting in a General Body meeting the minutes of which meeting are recorded and signed by the Office Bearers and attested by the Observer. Presence of at least half of the total number of voters shall constitute a quorum for this purpose.

(u)

'Sports Association' means a State Level Sports Association, District Level Sports Association or a Primary sports body constituted to promote sports and games in the State.

(v)

'State Level Sports Association' means an elected representative body of District Level Sports Associations, for particular game or sports in the State which is duly affiliated to the Bihar State Sports Council and to Bihar Olympic Association and is registered by the Registrar.

Chapter - II Registration and Constitution

3.

Compulsory Registration.

- Every sports Association defined under this Act, other than a primary Sports Body, is required to be registered under the provisions of this Act.

4.

Registrar.

- Director, Student and Youth Welfare, Art, Culture & Youth Department, Government of Bihar shall be the Registrar for discharging duties and responsibilities of Registrar under this Act.

Provided that Secretary, Department of Art, Culture and Youth Affairs shall have power to appoint as many Assistant Registrar, as he may deem expedient to assist the Registrar to discharge his function under this Act.

5.

Bihar State Sports Council.

- Government of Bihar, shall constitute a council known as Bihar State Sports Council, which shall consist of not less than three and not more than seven Members and shall be appointed in the following manner.

(a)

Secretary, Art, Culture and Youth department -Chairman Ex-Officio

(b)

Director, Youth & Students welfare - Member Secretary

(c)

Director General, Bihar State Sports Authority - Member

(d)

Two persons to be nominated by State Government from amongst registered State Sports Association and affiliated to Bihar State Sports Council - Member

(e)

Two persons to be nominated by State Government from amongst outstanding sports persons of the State - Member 6.

District Sports Council.

- Bihar State Sports Council shall constitute a District Sports Council for each revenue district comprising of not less than three and not more than seven members in the following manner -

(a)

District Magistrate - Chairman, Ex-Officio

(b)

Superintendent of Police - Member

(c)

District Level Sports Officer - Member Secretary

(d)

Two persons to be nominated by Bihar State Sports Council from amongst registered District Level Sports Association - Member

(e)

Two persons to be nominated by Bihar State Sports Council from amongst sports persons of the district - Member

7.

Affiliation of State Level Sports Association by Bihar State Sports Council.

(1)

Every state Sports Association registered by Registrar under this Act shall be entitled to apply for affiliation by Bihar State Sports Council.

(2)

Every registered State Sports Association shall make an application in prescribed manner to Bihar State Sports Council for grant of affiliation. On receipt of application for State Sports Association for grant of affiliation, Bihar State Sports Council, shall on being satisfied, regarding terms and condition for grant of affiliation, pass an order granting affiliation to State Sports Association and shall issue a certificate of affiliation to the State Sports Association and after such certificate having been granted, State Sports Association shall be deemed to be affiliated to Bihar State Sports Council; Provided that in the entire State of Bihar, Bihar State Sports Council shall not grant affiliation to more than one State Sports Association in one particular game and or sport;

Provided further that if many Associations have applied for grant of affiliation in one particular game or sports, Bihar State Sports, Council shall decide which of such State Sports Association in a particular game or sports is eligible for grant of affiliation and to represent the State of Bihar in that game and or sport in the manner to be decided by Bihar State Sports Council;

Provided further also that in deciding affiliation the Bihar State Sports Council shall also consider whether the said State Sports Association is affiliated to the National Sports Federation or not;

Provided further also that in deciding affiliation to State Sports Association Bihar State Sports Council shall also take into consideration maximum number of revenue district being represented by State Sports Association in that particular game and or sport.

8.

Affiliation of District level sports association by District Sports Council.

(1)

District Level Sports Association registered by Registrar under this Act shall be entitled to make an application to District Level Sports Council for grant of affiliation.

(2)

On an application made by registered District Sports Association. District Sports Council, on being satisfied that the Association fulfills the terms and condition for grant of affiliation, shall immediately pass an order granting affiliation and issue a certificate of affiliation to District Sports Association;

Provided that District Sports Council shall not grant affiliation to more than one District Level Sports Association in a particular game or sport in a particular district;

Provided further that if many Association in a particular game and sports make an application for grant of affiliation to District Sports Council, District Sports Council shall decide which of the Association deserves to be affiliated as District

Level Sports Association in that particular game and or sport in accordance with manner prescribed by Bihar State Sports Council.

(3)

Not withstanding, anything contained in this Act existing District Sports Association affiliated to Bihar Olympic Association shall be deemed to be affiliated to District Sports Council;

Provided that District Sports Council shall have authority to inquire and ascertain proper functioning of District Sports Association.

Provided further that District Sports Council on being satisfied on such enquiry as it may deem expedient that District Sports Association has not organized its proper functioning, it shall take such step as deemed expedient to organize and constitute Governing Body of District Sports Association in the manner prescribed by Bihar State Sports Council.

9.

Application for Registration of Sports Association.

(1)

An existing State Level Sports Association and any other future State Level Sports Association for a game or sports and its affiliated District Level Sports Association shall apply for registration of the Association, stating therein the name, address, area represented, game or sports represented by the Sports Association and with, complete details of the Executive Body and accompanied with the document specified in Schedule 'A'.

(2)

If the Registrar finds that the requirement of sub section (1) is not satisfied, he shall, after giving a fifteen days notice to the applicant and an opportunity of being heard pass appropriate order either allowing or refusing registration as the case may be.

10.

Framing of Constitution of a Sports Association.

- Subject to the provisions of this Act, every sports Association shall frame its constitution which shall consist of the following: -

(a)

Part 'A' - Memorandum containing its aims and objectives and area of operation.

(b)

Part 'B' - Bye-laws

11.

Bye-laws.

(1)

Subject to the provisions of this Act, every sports Association which seeks registration under this Act shall make, amongst other things, the following provisions in its bye-laws:-

(a)

Executive Body of the Sports Association shall be elected in a democratic manner in periodical elections.

(b)

Elections of the Executive Body shall be held at least once in every four years.

(c)

District Level Associations shall make provisions to abide by those decisions or direction of the concerned State level Sports Association, which are in consonance with the provisions of this Act.

(d)

Provisions to encourage the Sports and sports persons of every section of society without any discrimination.

(2)

Every Sports Association shall incorporate a procedure for elections in its bye-laws, which shall, among other provisions, comprise the following:-

(a)

Provisions of an independent election officer.

(b)

Publication of a voters list before issue of notice of elections.

(c)

Minimum 21 days notice for election, issued under the name and seal of the Secretary of the Association accompanied by the audited accounts for the previous year and valid voters list.

(3)

Subject to the provisions of sub section (4) every amendment in the bye-laws shall be passed by a special Resolution and shall be approved and registered by the Registrar under the provisions of this Act.

(4)

If the Registrar is of the opinion that the proposed amendment is not in accordance with the provisions of this Act, he may return the proposed amendment along with the reasons to the Sports Association for reconsidering the same. The Sports association shall, thereafter, reconsider the proposed amendment and may resubmit fresh proposed amendments to the Registrar after bringing it in accordance with the provisions of this Act and after meeting the objections made. Thereafter the Registrar shall either approve or disapprove the proposed amendment and communicate his order with reasons to the concerned Sports Association.

12.

Membership of a Sports Association.

(1)

Every District Level Sports Association, registered under this Act, shall be a member of the concerned State level Sports Association.

(2)

Every primary Sports Body shall be a member of the concerned District Level Sports Association.

(3)

Subject to the provisions of this Act, any addition, deletion or change in membership may be made only at a General Body meeting of a sports Association.

13.

Minimum requirement of constituting a Sports Association.

(1)

A State Level Sports Association shall be constituted by a minimum of six district level Sports Association.

(2)

A District Level Sports Association shall be constituted by a minimum of three primary Sports Bodies.

(3)

A Primary Sports Body shall be constituted by a minimum of seven individuals.

14.

Constitution of the Executive Body.

- Executive body shall be constituted consisting of minimum of five and a maximum of twenty one members including the office bearers.

15.

Bihar Olympic Association and district Olympic Association.

(1)

Notwithstanding anything contained in this Act, the Bihar Olympic Association shall be given affiliation by the Bihar State Sports Council and shall be deemed to be a State level Sports Association.

(2)

Every registered State Sports Association recognized and affiliated by Bihar State Sports Council shall be deemed to be affiliated to Bihar Olympic Association.

(3)

Bihar Olympic Association shall issue a certificate of affiliation to all registered State Sports Association affiliated to Bihar State Sports council.

(4)

If Bihar Olympic Association refuses to grant certificate of affiliation to registered State Sports Association affiliated to Bihar State Sports Council for any reason whatever on an application made by State Sports Association, Bihar State Sports Council shall issue certificate of affiliation and certificate so issued by Bihar State Sports Council shall be deemed to have been issued by Bihar Olympic Association.

Chapter - III Elections

16.

Elections.

(1)

Election of the Executive Body of a State Level Sports Association shall be held in the presence of an observer of the Bihar State Sports Council. Election of the Executive Body of a District Level Sports Association shall be held in the presence of Observer of its State Level Sports Association and observer of the District Sports Council.

(2)

On conclusion of the election of the Executive Body of a Sports Association, the election officer shall issue a certificate, duly countersigned by the observers giving the names and addresses of the elected members. On issuance of such certificate the elected Executive Body shall take charge of the sports Association. The election officer shall send the copies of such certificate to the Registrar and the Bihar State Sports Council.

17.

Voting right.

(1)

Every member of a Primary Sports body shall have the right to cast one vote in the election of its Executive Body.

(2)

Each affiliated primary Sports Body shall have the right to cast one vote on behalf of that primary Sports Body for the election of the executive Body of a District Level Sports Association.

(3)

Each affiliated District Level Sports association shall have the right to cast one vote on behalf of that District Level Sports Association for the election of the Executive Body of a State Level Sports Association.

(4)

No Individual member shall have a right to cast vote for election of the executive body of a District Level Sports Association or State Level Sports Association.

18.

Eligibility for contesting elections.

(1)

All individual members shall be eligible to contest the elections of a primary Sports Body.

(2)

Office Bearers of all affiliated primary sports Bodies shall be eligible to contest the election of a District Level Sports Association.

(3)

Office bearers of all affiliated District Level Sports Association shall be eligible to contest the elections of a State Level Sports Association.

(4)

Anyone contesting election shall must possess the qualifications prescribed in Schedule B of this Act.

Chapter - IV Settlement of Disputes

19.

Conciliation and Arbitration.

(1)

If any dispute arises relating to the constitution, management activity, election or claim to affiliation of any Sports Association, the same shall be resolved through Conciliation and Arbitration.

(2)

The Arbitration and Conciliation Act, 1996 (Act No. 26 of 1996) as amended from time to time, shall apply to the Conciliation and Arbitration proceeding referred to under sub section (1).

Chapter - V Accounts, Audit and Inspection

20.

Accounts.

- Every Sports Association shall keep its accounts up to date.

21.

Audit.

- Every State Level Sports Association shall get its accounts audited by a Chartered Accountant and shall make appropriate arrangement for auditing of accounts of its affiliated District level Sports Associations.

22.

Returns.

- The statement of the accounts shall be sent within six months of the closing of the financial year by the primary Sports body to its District Level Sports Association, by the District Level Sports Association to its State level Sports Association, and by the State Level Sports Association to the Bihar State Sport Council.

23.

Power to call for Records and Inspection.

(1)

The Registrar or the Bihar State Sports Council may call for any record of a sports Association required for an enquiry under this Act.

(2)

The State Level Sports Association may call for any record of and affiliated District Level Sports Association required for an enquiry under this Act.

(3)

Bihar State Sports Council may call for any record of State Sports association, District Sports Council or District Level Sports Association for any enquiry under this Act.

Chapter - VI Disaffiliation, Inquiry and Disqualification

24.

Disaffiliation.

(1)

A State Level Sports Association may, after giving due hearing, disaffiliate District Level Sports Association which has not fulfilled any of the obligation laid down in chapter VIII of this Act for two years in succession and inform the Registrar, who may then take appropriate action under section -27.

(2)

The Bihar State Sports council may after giving due hearing disaffiliate any State Level Sports Association, which has not fulfilled any of the obligations laid down in the Chapter VIII of this Act for two years in succession and inform the Registrar, who may then take appropriate action under section-27.

25.

Grounds for Disqualification.

(1)

A Sports association shall be liable to action on the of the following grounds:-

(a)

If the Sports Association fails to maintain accounts and submits the same under section 20 or fails to produce the same when called for inspection.

(b)

If the Sports Association fails to hold Elections in accordance with its bye-laws or, as the case may be, when enjoined by the provisions of Chapter VII;

(c)

If the Sports Association fails to carry out its obligations under chapter VIII;

(d)

If the Sports Association or any of its Office bearers or any member misappropriates the funds for his personal gains or mismanages the affairs of the Sports Association to give undue benefit to any other person.

(2)

A State Level Sports Association may after giving opportunity of being heard, recommend to the registrar that a District Level Sports Association affiliated to it may be de-registered if it-

(a)

Does not follow the directions of the State Level Sports Association in the matter of conducting tournaments and or flouts its Regulations.

(b)

Does not pay the affiliation fee.

(c)

Otherwise violates the provisions of its own registered bye-laws.

26.

Inquiry.

(1)

The Registrar may,

(a)

On the request of a State Level Sports Association, or Bihar State Sports Council or

(b)

On the request of not less than one fifth of the total members of a Sports Association, or on his own motion hold an enquiry, either himself or by a person duly authorized by him.

(2)

The Registrar or the person authorized by him for the purpose of any inquiry shall have all the powers to inspect records and direct for production of and take copy of any document of the concerned sports Association for the purpose of the enquiry.

27.

Disqualifications.

(1)

After holding an inquiry, the Registrar after giving an opportunity of being heard to the affected Sports Association, may cancel its registration and disqualify Sports Association from seeking affiliation and further

(a)

Appoint an ad-hoc Executive committee and cause to hold fresh elections of the Executive Body within three months,

(b)

In the case of misappropriation of funds, take action in accordance with law.

(2)

No existing office bearer of a Sports Association which is disqualified under sub section(1) shall be permitted to contest elections of any Sports Association for a period of six years from the date of such disqualification.

28.

Prohibition to represent or to use the name of the State and District.

(1)

No person or group or persons, either individually or collectively shall represent or be allowed to represent the State of Bihar in any games or sports without being authorized by a registered and recognised State Level Sports Association.

(2)

No Sports Association shall be entitled to use the expression 'Bihar' or use the name of a District as part of its name or undertake any Sports activity which results in representing the State of Bihar or a District as an affiliated unit of any National Federation, Board, or Association purporting to represent India, or in any other manner whatsoever, unless such Sports Association is registered as a State Level Sports Association under this Act and is affiliated to Bihar State Sports Council.

(3)

Whoever contravenes the provisions of sub section (1) and (2) above, shall, on conviction, be punishable with imprisonment for a term not exceeding six months or with fine not exceeding Rs. 10,000/-or with both.

(4)

No court shall take cognizance of any offence under this Section, except upon complaint made in writing by the Registrar or any officer authorized by him.

(5)

The Registrar may, for reasons recorded in writing, compound any offence punishable under this Section. On composition of any offence under this Section, no proceedings shall be taken or continued in respect of such offence.

Chapter - VII Transition

29.

Recognition.

(1)

Notwithstanding anything contained in this Act, an Association undertaking games or sports activities at State or District Level and is already registered under the Societies Registration Act, 1860 (Act 21 of 1860) shall be entitled to opt to be registered and recognized under this Act, and to receive a certificate thereof on application to the Registrar, and within thirty days from the date of commencement of this Act shall amend its by-laws to bring it in conformity with the provisions of this Act to the satisfaction of the Registrar, and submit all the documents specified in Schedule 'A' of this Act.

(2)

If no such application is made within thirty days of the date of commencement of this Act or if the bye-laws of the Sports Association covered under sub section (1) are not brought in conformity with the provisions of this Act, at the expiry of thirty days from the date of commencement of the Act, the Registrar shall supersede the Executive Body of the Sports Association and an ad-hoc Executive Committee shall be appointed to manage the affairs of the Sports Association. Such an ad-hoc executive committee shall call an extraordinary General Meeting and get amended bye-laws approved within thirty days of taking charge, apply for registration under the provisions of this Act and then proceed to conduct fresh election.

(3)

After the amendment in bye-laws, fresh elections shall be held within thirty days from the date of such amendments in the cases where

(a)

Such an amendment has been made after superseding the earlier elected Executive Body.

(b)

Earlier elected executive body has been elected by voting collegiums which comprised members other than those provided under this Act;

Provided that the voting collegiums and eligibility of persons for contesting elections shall be determined on the basis of sub section (4)

(4)

Notwithstanding anything contained in this Act, at the commencement of this Act, the office bearers of the Executive Bodies of various State Level Sports Associations and District Level Sports Associations shall be determined in the following manner for the purpose of conduct in any fresh Elections under sub section (3):-

(a)

For the State Level Sports Association, on the basis of the returns filed by the affiliated state Level Sports Associations with the Bihar State Sports Council and the record available with the Bihar State Sports Council based on such returns on the date of commencement of the Act.

(b)

For the District Level Sports Association, primarily on the basis of returns filed by the affiliated State Level Sport Council on the date of commencement of the Act.

30.

Cessation of registration.

(1)

Notwithstanding anything contained in any other law for the time being in force, the registration of all the Sports Association which are registered under the Societies Registration Act, 1860 (Act No.21 of 1860) and have opted for registration and recognition under section 29 shall cease to exist from the date of such option.

(2)

Notwithstanding the cessation of registration of an Association under sub section (1), all the claims accrued of liabilities incurred or proceeding initiated prior to the commencement of this Act shall be claimed, suffered or, as the case may be, continued as if the registration has not ceased to exist.

(3)

On cessation of registration of an Association under sub section (1) the property of the Association shall, subject to the bye-laws of the Association, continue to vest in such persons or body of persons in whom the property vested immediately prior to the commencement of this Act.

Chapter - VIII Right and Obligations of Sports Association

31.

Right to participate.

- Every Sports Association shall have the right to participate in the sports activities conducted by the sports Association to which is affiliated, subject to the provisions in the bye-laws and Regulations of the affiliating Sports Association.

32.

Obligation of the State Level Sports Association.

- Every State level Sports Association other than Bihar Olympic Associations Shall;

(i)

Conduct at least one inter-District State Championship, for the senior and juniors every year.

(ii)

Send its players and teams to participate at the National Level.

(iii)

Arrange to provide round the year training and coaching facilities for the players either by itself or in association with Bihar State Sports Council.

(iv)

Arrange to give such prizes, scholarship, medals and other facilities as would encourage the sports persons.

33.

Obligations of the District Level Sports Association.

- Every District level Sports Association other than Bihar Olympic Associations shall;

(1)

Conduct at least one inter-District level Championship, for the senior and juniors every year.

(2)

Send its players and teams to participation at the State Level.

(3)

Arrange to provide round the year training and coaching facilities for the players either by itself or in association with Bihar State Sports Council.

(4)

Arrange to give such prizes, scholarship, medals and other facilities as would encourage the sports persons.

Chapter - IX Miscellaneous

34.

Power to make Rules.

(1)

The State Government may by notification in the official gazette, make rules for carrying into effect the provisions of this Act.

(2)

All rules made under this Act shall be laid, as soon as may be, after they are so made, before the both Houses of the State Legislature, while it is in session, for a period not less than fourteen days which may be comprised in one session or in two successive session and, and if before the expiry of the session in which they are so laid or of the session immediately following in the House of the State legislature makes any modification in any of such rule shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of any thing previously done under that rule.

35.

Removal of difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, The State Government may, by general or special order published in the official gazette, give such directions as are not inconsistent with the provisions of this Act and may appear to be necessary or expedient for the purpose of removing such difficulty;

Provided that the power conferred under this section shall not be exercised after the lapse of three years from the date of enforcement of this Act.

36.

Protection of Acts done under the Act.

- No suit, or other legal proceedings shall lie against the State Government or any authority or officer or servant of the

State Government for any act done or for any action taken in carrying out the provisions of this Act or the rules made there under.

37.

Amendment in schedule A, B, and C.

- The following procedure shall govern any addition or alteration to and deletion from the list provided under schedule A schedule B and C.

(a)

Bihar State Sports Council may send a written advice to Registrar after passing a Special Resolution.

(b)

Upon receiving the written advice, the Registrar shall publish a notice of the proposed addition, alteration or deletion.

(c)

Upon expiry of thirty days from the publication of such notice, the proposed amendment shall be considered by the State Government, and if the State Government thinks it fit, it may, by notification in the official Gazette, amend the concerned schedule;

Provided that all notification issued under this section shall be laid as soon as may be after there are so issued, before the House of the State Legislative.

38.

Appeal.

- Any Sports Associations or person aggrieved by an order made by the Registrar under the provisions of this Act may appeal against the order to Bihar State Sports Council within thirty days of such an order being made final and a revision against the order passed by Bihar State Sports Council shall lie with the High Court within thirty days of such an order; Provided that Director, Student Youth Welfare, Government of Bihar shall not participate in the proceeding in case of an appeal against the order of Registrar under the Act.

39.

Savings.

- All lawful actions taken or purported to have been taken by a Sports Association under the Societies Registration Act, 1860 (Act No. 21 of 1860) prior to the commencement of this Act shall be deemed to have been taken by virtue of its being registered as a Sports Association under this Act.

40.

Effect on societies formed under other Act.

(1)

If any society or company established for the purpose of sports and registered under any other law prior to the commencement of this Act contains as part of its name the expression "Bihar" or the name of any district of the State or its part, such society shall amend its name to remove "Bihar" or as the case may be, the name of the district from the registered name of the society within thirty days from the commencement of this Act.

(2)

If any society fails to comply with the provisions of sub section (1) and such society has not opted to be registered under the provision of this Act, such society shall cease to have any existence under the provisions of this Act.

A

List of Documents necessary for registration:-

1. List of members attested by a Magistrate.
2. List of elected members of the executive Body
3. Certificate of Affiliation
4. Memorandum and Bye-Laws made in accordance with the provisions of this Act (in two copies).
5. Minutes of the general meeting
6. In the case of an existing Association, an undertaking to bring the bye-law in conformity with the provisions of this Act
7. Up to date audited accounts.

B

Qualifications for contesting elections and holding the post of an office bearer

1. He/She shall be a citizen of India.
2. He/She should possess any one Qualification listed below within the area of operation of the concerned Sports

Association

(A)

He/She has been born there,

(B)

He/She is ordinarily resident there,

(C)

He/She is working there,

(D)

He/She possesses property there.

3. He/She has not been convicted in any criminal cases.

4. He/She has not been declared insolvent

C

Mandatory records to be maintained by a Sports Association

1. Register of Members

2. Minute Book of the meeting of the Executive Body.

3. Minute Book of the meeting of the General Body

4. Register of Accounts,

5. Records of activities, events and achievements.

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Translation